

Minnesota Digital Due Process Act

Section 1. Short Title

This Act shall be known and may be cited as the “Minnesota Digital Due Process Act.”

Section 2. Legislative Findings and Purpose

The Legislature finds that:

- a. Government agencies increasingly utilize automated systems, predictive analytics, artificial intelligence, machine learning systems, and algorithmic decision-support tools.
 - b. Such technologies may improve efficiency, reduce administrative burdens, identify fraud, allocate resources, and assist public officials in carrying out lawful governmental functions.
 - c. Constitutional protections, including due process and equal protection, remain applicable regardless of technological medium.
 - d. Public confidence in governmental institutions depends upon transparency, accountability, fairness, and meaningful human oversight.
 - e. Individuals should not be subjected to material adverse governmental action principally or solely on the basis of automated predictions, algorithmic determinations, or risk scores absent independent supporting evidence and meaningful human review.
 - f. The purpose of this Act is to preserve constitutional safeguards while permitting continued governmental innovation and lawful use of technology.
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Section 3. Definitions

For purposes of this Act:

Subdivision 1. Automated Decision System

“Automated Decision System” means a computational process, including artificial intelligence, machine learning, statistical modeling, algorithmic analysis, or similar technology, that is used to make or that materially contributes to a governmental decision affecting an identifiable individual.

The term does not include:

- a. basic calculations;
- b. database searches;
- c. spell-checking, formatting, or clerical software;
- d. cybersecurity systems whose outputs are not used to make determinations regarding specific individuals;
- e. **aggregated or de-identified statistical reporting that does not produce individual-level determinations.**

Subdivision 2. Material Adverse Governmental Action

“Material Adverse Governmental Action” means a governmental determination that substantially and directly affects an individual’s rights, privileges, benefits, opportunities, legal status, property interests, or liberty interests.

Examples include but are not limited to:

- a. denial, suspension, or termination of public benefits;
 - b. licensing determinations;
 - c. regulatory enforcement actions;
 - d. civil penalties;
 - e. government employment determinations;
 - f. eligibility determinations;
 - g. placement on governmental monitoring, risk, or investigative lists that carry legal consequences.
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Subdivision 3. Human Review

“Human Review” means meaningful consideration by an authorized public official who:

- a. reviews the relevant facts and independent evidence;
- b. possesses authority to disagree with, modify, or reject the automated output;
- c. exercises independent judgment and documents the rationale for the final determination; and

- d. **is not required to automatically adopt the system’s recommendation.**

Subdivision 4. Independent Supporting Evidence

“Independent Supporting Evidence” means evidence separate from the automated determination itself and reasonably sufficient to support the governmental action under applicable law. Where statistical inference is relied upon, agencies should identify corroborating facts, records, or observations that provide an independent basis for the action.

Subdivision 5. Government Agency

“Government Agency” means any department, agency, board, commission, political subdivision, public authority, or instrumentality of the State of Minnesota.

Section 4. Prohibition on Sole Reliance

A government agency shall not impose a Material Adverse Governmental Action principally or solely on the basis of:

- a. an automated decision;
- b. a predictive risk score;

- c. an algorithmic classification;
- d. an artificial intelligence output;
- e. an automated recommendation;

unless independent supporting evidence reasonably sufficient under applicable law also supports the action.

Section 5. Human Accountability Requirement

Prior to any Material Adverse Governmental Action materially influenced by an Automated Decision System:

- a. Human Review shall occur;
- b. the reviewing official shall exercise independent judgment and shall document in the administrative record the reasons for the final decision, the independent supporting evidence relied upon, and the reviewer's identity or role;
- c. the reviewing official shall retain final decision-making authority.

No governmental agency may delegate final legal responsibility for a Material Adverse Governmental Action to an Automated Decision System.

Section 6. Notice Requirement

Where an Automated Decision System materially contributed to a Material Adverse Governmental Action, the affected individual shall receive notice that:

- a. an Automated Decision System was utilized;
- b. the system materially contributed to the determination;
- c. the determination was subject to Human Review; and
- d. information on how to request review or appeal the decision and where to find any administrative procedures applicable to such review.

Notice shall be provided promptly and, except in exigent circumstances, no later than 30 calendar days after the determination.

Section 7. Opportunity for Review

An individual subject to a Material Adverse Governmental Action materially influenced by an Automated Decision System shall have access to any review, appeal, hearing, or reconsideration procedures otherwise available under applicable law.

Nothing in this Act shall be construed to create new causes of action beyond those expressly provided herein.

Section 8. Recordkeeping and Accountability

Government agencies utilizing Automated Decision Systems in consequential decision-

making shall maintain records sufficient to:

- a. identify the system used;
- b. identify the purpose for which the system was used;
- c. document Human Review procedures and reviewer attestations;
- d. permit lawful auditing and oversight.

Agencies shall not be required to disclose information protected by law, including trade secrets, law enforcement-sensitive information, classified information, or information otherwise exempt from public disclosure. Agencies should, however, publish a public summary describing the types of systems used, the purposes served, and the agency's Human Review processes, with appropriate redactions.

Relevant records shall be retained for a minimum of five years, subject to lawful exemptions. Agencies shall adopt implementation plans within 12 months of enactment describing training, recordkeeping, and review procedures.

Section 9. Law Enforcement Safeguards

Nothing in this Act shall prohibit law enforcement agencies from:

- a. utilizing predictive tools for investigative leads;
- b. employing analytical systems for intelligence purposes;
- c. using technology to allocate resources or prioritize investigations.

However, no person shall be arrested, charged, sanctioned, designated as a suspect, or subjected to legal consequences solely on the basis of an automated prediction absent independent lawful grounds.

Section 10. Construction

This Act shall be construed narrowly to preserve constitutional protections while minimizing unnecessary burdens upon governmental operations.

Nothing in this Act shall:

- a. prohibit lawful governmental use of artificial intelligence;
 - b. require disclosure of protected investigative methods;
 - c. create a property interest in data;
 - d. prohibit statistical analysis;
 - e. prohibit fraud detection systems;
 - f. prohibit cybersecurity systems;
 - g. alter existing evidentiary standards.
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Section 11. Enforcement

A person aggrieved by a knowing and material violation of this Act may seek:

- a. declaratory relief;

- b. injunctive relief;
- c. review through existing administrative procedures where applicable.

Courts shall give substantial weight to good-faith compliance efforts undertaken by governmental agencies. In an action for a knowing and material violation, courts may award reasonable costs, including attorney's fees, to a prevailing plaintiff.

Technical or harmless errors that do not materially affect an individual's rights shall not constitute a violation of this Act.

Section 12. Severability

If any provision of this Act or its application is held invalid, the invalidity shall not affect other provisions or applications that can be given effect without the invalid provision or application.

To this end, the provisions of this Act are severable.

Section 13. Effective Date

This Act shall take effect on July 1 following enactment.

Government agencies shall be provided a twelve-month implementation period to establish compliance procedures.

Existing systems may remain operational during the implementation period.